From: **JBR Rich** jeremy.rich@berjak.com.au
Subject: Re: Details of short term lease of Walkerville property to Nick Paul
Date: 2023 November 14 at 5:40 pm
To: Graeme Efron graeme@efronlaw.net, rich susan susan.janet.rich@gmail.com

Hi Graeme,

Agistment agreement

The issue relates to the agreement being deficient in dates and details. I have attached the previous agreement that was put in place by Simon Rich in 2021 to show details.

The meeting minutes in which it was resolved to lease the land to the chicken farmer show that the meeting was on the 12th of July 2023, and yet Adam did not sign the minutes until the 30th of August 2023 even though he was and is in regular communication with Mr Nick Paul.

I would invoice him from the 12th of July 2023 until the 25th of October 2023, When he removed the cattle after indicating he wasn't leasing the land.

I can draw up an invoice for $80 per day + GST for 105 days, which equals $8,400 plus GST.

Nick must arrange for the NLIS transfers of the animals he had on our property, as it is the law.

Let me know if this is appropriate, and I will prepare an invoice with the legal requirements of the transfers of livestock to be provided.

Walkerville Vineyard Wines

In the latest email, Adam indicates:

- All Walkerville Pinot has now been sold other than 37 x 750ml bottles of the 2013 vintage and seven magnums of the 2013 vintage, which Bentley Wine Co could not sell due to it being too old and past its prime (**Remaining Stock**).
    - Bentley Wine Co arranged for sales of Walkerville Pinot at $8.64 p/bottle, which netted in total $9,164.92 less storage costs of approx. $214.
    - I arranged direct sales at $22 p/bottle, which netted $6,864 less a collection fee payable to the wine storage facility of approx. $50 in total.
- As such, I have arranged for Next Vintage's stock of Walkerville Pinot to be sold for a total of $16,028.92 less approx. $264 in storage and collection costs.

In the meeting minutes, they resolved that we had 1800 bottles of wine, and the vintage were all 2016 and 2017, with current enquiries at 26 - $30/bottle.

This is corporate espionage, fraud, and theft to sell the wines at $8.64 per bottle. Especially as they had no right to do so, and the meeting minutes are not from Next Vintage.

Moving forward ...

We can pay the tax with our current cash flow, get our banking back into line, and present a business plan to borrow a small amount against the farm with Regional Investment Corporation, which offers low-interest rates for agriculture. We have Switzerland let out at present, which is paying expenses in Switzerland. The property is on the market at Sfr4.2 million, and we have Sfr1,000,000 in a mortgage; the sale would net Sfr3.2 million less taxes and expenses. (A$5.5 million)

Our Current Equity

1. Mt Eliza (unencumbered) $5-$10 million
    a. The current valuation estimate is $5-6 million
    b. Sub-division potential increased value if done by $1-2 million
    c. Furniture Art and Jewellery $2 million
2. Walkerville 3 titles of 85 acres (unencumbered) $3.1 million
    a. The current Council valuation is $3.125 million
    b. Chicken farmer wanted $2.5 million for his 86 acres with a house, shed and yards.
    c. We have plant and equipment worth approx $75,000
3. Switzerland (sfr1 million mortgages) Sfr 3.2 million
    a. Currently being let out Airbnb and premium private rental agency
    b. Real Estate Sales agreement in place for marketing of property.
4. Bank Accounts
    a. Nab - It appears that Adam has withdrawn $20 - $30,000 this year
    b. Bendigo - Adam indicates that we have $100,000
    c. ANZ - We have approx $90,000
    d. BEKB - We have approx sfr6,000

Total Position is approx A$20 million.

Indeed, we can and should set up a loan facility to start trading again - purchase cattle that make money, for instance. Yards cost $5,000 for a portable set. My father never had any debt, which drove our business's creation.

Another project Susan and I are looking into is the sub-division of Mt Eliza. The property is 4,600 square meters and would allow for a second residence. The sub-division process should cost approximately $30k, including surveys, planning reports, etc. The outcome is that the property is worth a higher value, and it may allow Susan to downsize without moving.

The issue that we have had for over eight years is cash flow. We are constantly being strangled for cash flow, forcing us to put the Walkerville property on the market. My father was a trader, and it was well-known that he would sell assets if he required cash flow.

Food for thought ...

If you would like my opinion on the underlying driver behind this illegal activity and manipulation ... It can't just be that my siblings decided not to like me after 2016 when I was elected to the South Gippsland Shire Council. Whilst I am sure they did not like that Dad desired to leave me in control of the No. 2 Trust there must be a more tangible driver as this doesn't answer why they have ostracised me since 2016, citing different causes for the same attitude ever since. They sold our farm for undervalue and had nothing to say about the criminal activity presented to them.

There is a body of evidence that suggests unique geological features that indicate a potential of either a gas or mineral deposit near the surface under the land at Walkerville. I have a whole other range of issues that I have come across concerning the Department of Earth Resources and a mineral exploration license they accepted but have not processed since it was submitted in 2012 by a company called Liechart Resources. When I started investigating the minerals and geology, my siblings "ambushed Mum and Dad", getting them to agree to sell 75% of the farm in a very odd and uncooperative arrangement whilst removing me as CEO and resolving that I was not authorised to contact anybody on behalf of the Berjak group of companies including our staff in the office.

The Department of Jobs Precincts and Regions incorporates Agriculture Victoria and Earth Resources, who manage RRAM. (Resource Rights Allocation Management).

Best regards

Jeremy

On Tue, 14 Nov 2023 at 12:23, Graeme Efron <graeme@efronlaw.net> wrote:

> Susan and Jeremy
>
> It would seem easy to confirm if it is fraud or if there was a verbal agreement as described by Adam by sending Nick a demand for payment of outstanding fees.
>
> We await your instructions.
>
> ## Graeme Efron | Principal
>
> ### Liability limited by Professional Standards Legislation
>
> **From:** JBR Rich <jeremy.rich@berjak.com.au>
> **Sent:** Tuesday, November 14, 2023 11:42 AM
> **To:** Graeme Efron <graeme@efronlaw.net>; rich susan <susan.janet.rich@gmail.com>
> **Cc:** George Kabourakis <george@efronlaw.net>
> **Subject:** Re: Details of short term lease of Walkerville property to Nick Paul
>
> Graeme,
>
> This is fraud as there was no recent agreement when I spoke with the police.
>
> Best regards
>
> berjak.
> buy.ship.sell.
>
> **Jeremy Rich**
> **Berjak**
> Melbourne VIC 3000, Australia

Melbourne VIC 3000, Australia

m: +61 4088 73501 **w:** berjak.com.au **e:** Jeremy.rich@berjak.com.au

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From: Graeme Efron <graeme@efronlaw.net>
Sent: Tuesday, November 14, 2023 11:02:14 AM
To: rich susan <susan.janet.rich@gmail.com>; 'Mr Jeremy Benjamin Rich (Client)' <jeremy.rich@berjak.com.au>
Cc: George Kabourakis <george@efronlaw.net>
Subject: Details of short term lease of Walkerville property to Nick Paul

Susan and Jeremy

Please see the email from Adam originally sent on 27 October 2023 which was sent again last night.

Please read and provide your comments and instructions.

Kind regards

Graeme Efron I Principal

Liability limited by Professional Standards Legislation

From: Adam Rich <Adam.Rich@wisemah.com.au>
Sent: Monday, November 13, 2023 5:54 PM
To: Graeme Efron <graeme@efronlaw.net>
Subject: RE: Details of short term lease of Walkerville property to Nick Paul
Importance: High

Graeme,

Further to our telephone conversation this afternoon, I am re-sending you my previous email dated 27/10/23 (below) in which I explained the background to the neighbour agisting the land at Walkerville, what he owes Ansevata Noms and why he is yet to pay anything.

In particular, I noted to you below as follows:

- "The short term lease with Nick ended on 25/10/23. I calculate that he owes Ansevata $3,520 (incl GST) being $88 p/day (incl GST) x 40 days. If Nick confirms to SEJ to release to Ansevata the $2,000 that SEJ is holding in trust, he will owe Ansevata $1,520.00. In my view, this is the extent of his liability to Ansevata. However, I seek your advice and will leave it to you to correspond with Nick in respect of this matter."

I confirm your advice that Mum is happy for someone to camp on the land free of charge. For what it's worth, I think the preferable option would have been to continue to realise $88 p/day to agist the land to the neighbour, but ultimately that's a decision for Mum to make with your

agist the land to the neighbour, but ultimately that's a decision for Mum to make with your counsel.

Regards

Adam

From: Adam Rich
Sent: Friday, 27 October 2023 4:27 PM
To: Graeme Efron <graeme@efronlaw.net>
Subject: Details of short term lease of Walkerville property to Nick Paul
Importance: High

Hi Graeme,

As discussed, and requested, following is the background and current status of the short term lease of Ansevata Nominees Pty Ltd's (Ansevata) land situated at Walkerville, Vic to Nick Paul:

- On 12 July 2023, the directors of Ansevata Nominees Pty Ltd (**Ansevata**) resolved to sell some or all of the remaining land situated at Walkerville for the purposes of:
    - paying Ansevata's ATO tax debt; and
    - otherwise for my mother's ongoing living expenses, any other debts and as she sees fit.

  Attached are a copy of the minutes of the Board meeting which were prepared by Taylor Splatt. I have previously emailed you a copy of this (further copy of my email of 11/10/23 is attached)

  - Further to that meeting (and as noted in the Board minutes), Ansevata entered discussions to agist Ansevata's land at Walkerville to the neighbour, Nick Paul on the following terms:
    - Term:
      - 3 months
      - Can be terminated by Ansevata at any time after 2 months with 60 days' prior notice
      - Permitted use: livestock grazing
    - Rent:
      - $80.00 plus GST per day
      - During the term the tenant will, at its cost, repair fences and gates on Ansevata's land
    - The tenant will provide written instructions to SEJ stock agents to release $2,000 to Ansevata which SEJ currently holds on trust for Ansevata and the tenant.

      The background to this $2,000 is that, as Ansevata has no stockyards on the land, it was only able to transport its last remaining cattle to market for sale on 28 June 2023 on the basis that Nick agreed to allow SEJ stock agents to use Nick's yards to move Ansevata's cattle. Nick also mustered the cattle, yarded

and tagged them and loaded them onto the truck. He agreed to do this for a fee of $2,000. The cattle sold for $95,538.90 in total, of which $93,538.90 was paid into Ansevata's Bendigo Bank account and SEJ still holds the $2,000 balance.

- The purpose of the short term lease was to both realise some revenue from the property in the period leading up to sale but also as Elders advised that the old grass needed to be eaten down during spring so the new spring grass could grow through, which would make the property more attractive to grazing buyers.

- Ansevata then instructed Taylor & Splatt to prepare the short term lease. See attached emails from me to my mother, Alan Splatt and Graham Fountain dated 08/09/2023 and 13/09/2023. I have previously emailed you copies of these undercover of my attached email of 11/10/23.

- Also attached is a copy of an sms I sent to my mother on 13 September 2023 at 8:28am confirming that I would proceed to have Taylor Splatt draw up a short term lease of the Walkerville property to Nick the neighbour and Mum's response of 14 September 2023 acknowledging my message and noting that 'The leasing seems a way forward, with some return at present."

- On 14 and 15 September 2023, Elders and Nick contacted Simon (my brother) and I following up the lease document. Given that the property was to be marketed for sale in September and October, Elders advised that the old grass needed to start being grazed ASAP. As such, we agreed that, whilst Taylor & Splatt were drawing up the lease agreement, Nick could commence the lease period in order for his stock to start eating down the old grass. So, he will owe $80 per day for the period commencing from 15 September 2023 until his tenancy ends.

- As Mum elected to move law firms on 02/10/23, the lease has not been prepared/finalised, nor have the s32s for the sale of Walkerville. Despite still being a director of Ansevata and, to my knowledge, no resolutions have been passed since 12 July 2023 and 30 August 2023 in respect of not proceeding with the proposed sale of Walkerville, as I have been awaiting your office to confirm what my mother would like to do in respect of the proposed sale of Walkerville I have not communicated with Elders nor Nick since 02/10/23 until each of them recently contacted me (separately), as per below.

Nick

- As I have noted to you in a previous email,:

    - On 22/10/23, I had a call from Nick (m 0429 841 541) and the Inverloch police (constable Brad m 0467 343 217) advising that a man known to police with a mental health condition had cut the lock to the gate of the land at Walkerville and was camping at the dam. I did not call the police. They called me.

    - They said his name is Sean McDonald and he was bogged and that he told them that Jeremy had authorised him to camp on the land and that he's part of 'Operation Birdy' to prove the innocence of Ben Roberts Smith. I've never heard of this bloke nor that he had been authorised by anyone to camp on the land.

    - The police officer asked me if I, as a director of Ansevata, had authorised this bloke to camp at the farm. I said I hadn't. I said they could call my mother as the other director and ask her personally, but given Ansevata had agreed to lease the land to Nick I didn't see why it would be authorising anyone to cut the lock and camp on the land and I wasn't aware that it had.

- Nick has called and messaged me a number of times since 22/10/23 advising as follows:

    - Sean McDonald was removed from the property by the police, but returned

- Sean McDonald was removed from the property by the police, but returned on 24/10/23 with Jeremy.
- On 25/10/23, Sean and Jeremy chased Nick's cattle. Nick called the police and proceeded to remove his cattle from Ansevata's property.
- Jeremy and Sean attended Nick's house on 25/10/23 and swore at and threatened Nick in front of his wife and kids. Sean was videoing Nick. Nick asked him to stop, and reported this to Inverloch police.
- As Nick removed all of his cattle on 25/10/23, he sent me an sms that day advising that the lease arrangement was at an end as he and his wife do not feel comfortable with Jeremy's threats to sue Nick for 'stealing cattle' and unlawfully having his cattle on Ansevata's property.

- Today (27/10/23), Jeremy and Sean have been driving around knocking on various farmhouse doors looking for Ross Svenson (who purchased land from Ansevata in 2021). This included Jeremy and Sean attending the property which Ansevata sold to Svenson in 2021. Sean has posted videos of this on Facebook (see below). Nick says that others have reported this to the police today (you might like to call Constable Brad and Nick again for an update as I am only passing onto you, as Ansevata's lawyer, what Nick has expressed to me).

https://www.facebook.com/share/r/yibfc3o8aaEeo5Sd/?mibextid=k1j8BZ

https://www.facebook.com/share/v/bCmpXLccBRR356rC/?mibextid=Gd9JSz

- The short term lease with Nick ended on 25/10/23. I calculate that he owes Ansevata $3,520 (incl GST) being $88 p/day (incl GST) x 40 days. If Nick confirms to SEJ to release to Ansevata the $2,000 that SEJ is holding in trust, he will owe Ansevata $1,520.00. In my view, this is the extent of his liability to Ansevata. However, I seek your advice and will leave it to you to correspond with Nick in respect of this matter.

- Nick has asked that you confirm with him, as he and his wife are concerned about Jeremy's threats to sue them. I am also firmly of the view that Nick had a binding verbal agreement with Ansevata to agist the land for the 40 days that he did.

- For what it's worth, as a director of Ansevata and a specified beneficiary of the trust for which Ansevata holds the Walkerville land, I think that it is a very disappointing outcome that Ansevata has lost an $88.00 per day agistment tenant due to Jeremy's actions.

Elders

As we discussed on 25/10/23, I confirm that:

- Don Olden from Elders Korumburra called me on 24/10/23 seeking an update in respect of the s32s for the proposed sale of the Walkerville property.

- I advised Don that Ansevata had changed lawyers and I am awaiting confirmation from you as to whether my Mum still wants to proceed with the sale.

- Don advised that Elders will pause their sales process as he advised against commencing advertisement/marketing campaign etc for potential buyers to ask why there aren't s32s. I confirm that you agreed this was the correct course of action.

- As such, the Walkerville property is not currently being marketed for sale and I, as a director of Ansevata, am concerned about the solvency of Ansevata given that:

  - it has no income and no prospect of attaining any
  - it has $100,245.27 in its Bendigo bank account. A further $3,482 will be paid into this account from the sale of the final stocks of Next Vintage Pty Ltd's wine (I will send you a separate email with full details)
  - it and/or my Mum have a circa $30K invoice due to Taylor & Splatt
  - it is incurring legal fees with your firm
  - it has a tax debt instalment plan with approx $95,000 still to pay (although Nexia have advised that the instalments are up to date to August 2023)
  - Nexia has advised that Ansevata has not lodged a tax return nor BAS statements for 2 years and, on this basis, the ATO is likely to cancel the instalment plan and charge interest on the debt. I confirm that I advised you of this by phone earlier this week. As a director of Ansevata, I would like to instruct you to instruct Nexia to prepare the financial statements so as to avoid the ATO taking any adverse action. If you consider that you need to first obtain my Mum's instructions, then of course please do so as soon as you are able, including whatever appropriate advice you consider she requires regarding of her and my duty, as directors, to avoid Ansevata becoming insolvent
  - Ansevata will also have forthcoming accounting fees payable to Nexia

- Given the above, I remain firmly of the view that Ansevata should proceed with its previous resolution to sell some or all of its land in Walkerville. This will also result in my mother having funds to support her living. I am not aware of her having any income at the moment and have no insight into her bank account balances. Although in August 2023 she advised that she had circa $55,000 in an ANZ account.

Please don't hesitate to call me with any queries. Otherwise, as previously noted, I will leave it with you to advise my mother about what is in her best interests and the best interests of the family companies and trusts.

Thanks and regards

Adam

0402 418 825

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Memorandum Of Understanding
Varlow and J Rich & Partners

The Parties

This agreement will exist between

- J Rich & Partners A.C.N 004 686 131 (the Property Owner)
  and
- Charlie and Justine Varlow (the Animal Owner)

The agreement covers the agistment of Dairy Cattle on the property located at

Address: 2075 Walkerville Road, Walkerville, Via Tarwin Lower Vic 3956

Terms of the Agreement

1. J Rich & Partners agrees to agist dairy cattle on the farm for the payment of $9 per animal per week or part thereof.

2. J Rich & Partners agrees to supplementary feed the dairy cattle hay as required to supplement the pasture based diet.

3. The dairy cattle always remains the property of the Charlie and Justine Varlow.

4. The Property owner agrees to notify Charlie and Justine Varlow if any of their agisted livestock are sick or require veterinary attention.

5. Charlie and Justine Varlow are responsible for Insurance of the agisted cattle.

6. Charlie and Justine Varlow agree to remove all agisted stock upon two weeks notice from J Rich & Partners.

7. No agisted livestock are to be removed from the property without the consent of Charlie and Justine Varlow.

8. The maximum number of livestock to be agisted at one time is 250 cows.

9. All animals coming onto and leaving the property to be scanned on and off J Rich & Partners PIC Number: 3SGXJO37 in accordance with NLIS requirements.

10. Upfront deposit of $3,500.00 (based on average 100 cattle per month) to be paid prior to arrival of first truck load of cattle. Deposit to be returned as part of the final payment in full at the end of agistment period.

11. Charlie and Justine Varlow to provide J Rich and Partners with a monthly summary of total cattle agisted on the property.

12. Payment is to be made on a monthly in arrears by EFT.

Signed

J Rich & Partners
Property Owner..... Date.....6/5/21

Charlie and Justine Varlow
Animal Owner ..... Date.....

2023 07 12 Ansevata Nominees Minutes of Board Meeting.pdf

Our farm has a Netotectonic Feature - Waratah Fault.eml